

HEADNOTE

“1. An application for fixing costs must be filed with the court of first instance and shall be decided by the judge-rapporteur of that instance.

2. This also applies if the application is filed following an order or decision of the Court of Appeal and thus relates exclusively or partially to the costs of the appeal proceedings.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Application for provisional measures

PATENT
EP 3883277

METHOD FOR COMMUNICATING
SPATIALLY LOCATED
INFORMATION TO A MOBILE
TERMINAL

KEYWORDS

Cost determination following an order or de...

SUMMARY

The Court of Appeal Luxembourg issued a decision on an application for provisional measures. The patent at issue relates to a method for communicating spatially located information to a mobile terminal. According to the headnotes of the decision, applications for fixing costs must be filed with the court of first instance. The judge-rapporteur of that instance will decide such applications. This rule applies even when the cost application follows an order or decision from the Court of Appeal. In such cases, the costs may relate exclusively or partially to the appeal proceedings, yet the court of first instance retains jurisdiction to determine them.